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Case Number: 23STCV24476 Hearing Date: August 11, 2026 Dept: 414

23STCV24476

Jose Hernandez v. Koos Manufacturing, Inc.

Tuesday, August

11, 2026

[TENTATIVE]

ORDER GRANTING

PLAINTIFF, JOSE L. HERNANDEZ'S, MOTION FOR EVIDENTIARY SANCTIONS TO EXCLUDE DR. CRANDALL'S REPORT AND, TESTIMONY, AND/OR FOR MONETARY SANCTIONS (7052)

I.

BACKGROUND

The first

amended complaint alleges that Plaintiff was subjected to discrimination based on his disabilities while employed by Defendant. Plaintiff alleges seven causes of action for violations of the Fair Employment and Housing Act and for unfair business practices.

II.

ARGUMENTS

Plaintiff

requests an order to exclude from evidence at trial all testimony, reports, opinions, findings, conclusions, and materials relating to the defense mental examination of Plaintiff conducted by Dr. Rebecca Crandall on February 19, 2026; and for an order prohibiting Dr. Crandall from testifying at trial,

whether as a percipient witness or expert witness, regarding any observations, findings, opinions, or conclusions derived from that defense mental examination.

Plaintiff

argues that Dr. Crandall violated the parties' stipulation limiting the exam to certain issues and excluding inquiry into Plaintiff's immigration status and other highly personal background matters. Dr. Crandall based her opinion on matters that the parties' agreed would be excluded. Plaintiff also asks for imposition of monetary sanctions.

In

opposition, Defendant contends that Dr. Crandall complied with the terms and requirements of the stipulation. The mental examination is directly relevant to Plaintiff's claim for emotional distress. Plaintiff opened the door into the specific line of inquiry about his immigration status. Plaintiff contradicts his privacy claims by filing the transcript and expert report. The Court should impose monetary sanctions against Plaintiff.

In reply,

Plaintiff argues that Defendant's opposition confirms the fact that Dr. Crandall received the parties' stipulation before the examination and then conducted the exam as if the stipulation did not exist. Dr. Crandall did not articulate any good faith basis to justify inquiry into prohibited areas.

III.

DISCUSSION

A.

The Court's authority to impose sanctions.

The

Court has the inherent authority to impose sanctions including monetary, issue, and evidentiary sanctions for a party's abuse of the discovery process. (Code Civ. Proc., § 2023.030.) Conduct subject to such sanctions include, in relevant part, "employing a discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2023.010.)

Defendant

does not disagree with this proposition but contends that in the absence of unusual circumstances, such as repeated and egregious discovery abuses, there must be two factors present to justify imposition of nonmonetary sanctions: that there was a failure to comply with a Court order, and such failure was willful.

As

Plaintiff observes in reply, this is contrary to the California Supreme Court's holding that a trial court may rely on Code of Civil Procedure section 2033.010 and section 2033.030 as an independent source of sanctions "only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision." (*City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 74.) Imposition of sanctions under these sections are not limited to "extreme misconduct" or a pattern of discovery abuse. (*Agnone v. Agnone* (2025) 111 Cal.App.5th 758, 765.

Defendant's

argument that Plaintiff waived privacy claims by filing this motion with the transcript of the examination and the expert report is immaterial to the issue Plaintiff raises which is that the parties' stipulated to limiting Dr. Crandall's inquiries, and Dr. Crandall exceeded those limitations although she was given the stipulation with the relevant parameters. (Crandall decl., ¶ 5).

B.

The stipulation

The stipulation

sets forth the parameters of the examination: permissible inquiry was limited to "(i) Plaintiff's symptoms, complaints, diagnoses, treatment, medications, and functional limitations; and (ii) Plaintiff's work history with Defendant and the alleged workplace

events at issue." (Hynes decl., Ex. 1, 2:20-23.) In relevant part, Dr. Crandall could not inquire about the following topics:

"Inquiry into developmental/childhood history, family history, marital/ relationship history, financial history, immigration status, criminal/legal history, and other highly personal background matters is prohibited unless (a) Plaintiff affirmatively places the specific subject matter in issue during the interview, or (b) the

examiner articulates a good-faith basis that the specific line of questioning is reasonably necessary to assess causation of the emotional distress

damages claimed in this lawsuit.

Thus, by the terms of the stipulation the limitations applied unless Plaintiff “affirmatively places the specific subject matter in issue during the interview, or (b) the examiner articulates a good-faith basis that the specific line of questioning is reasonably necessary to assess causation of the emotional distress.” (Id.)

Plaintiff argues that “articulate[]” means “an express articulation on the record before the agreed-upon boundaries could be crossed.” (Mot. 11:13-14.) Plaintiff argues that “the transcript is completely silent on any such attempts. The absence of any good-faith articulation is not a technical deficiency—it is the mechanism the parties negotiated specifically to address this outcome.” (Id.) 11:15-16.

Defendant argues that the stipulation did not require Dr. Randall to state her good-faith basis on the record for the line of questioning prior to inquiry. Dr. Crandall was not prevented from following up on underlying facts when Plaintiff opens the door. (Opp. 9:16-19.) Defendant contends because Plaintiff referred to “the safety of immigrants, ‘people with a Hispanic face’, and feeling ‘persecuted’ in the current environment of immigration enforcement, Plaintiff affirmatively place his immigration status at issue.

However, those concerns were preceded by Dr. Crandall’s inquiry into his marital status and why he needed to get married now, a topic about which she could not inquire. This was preceded by questions concerning Plaintiff’s family history and marital/relationship history, which was precluded from inquiry, which later morphed into questions about his childhood, a topic also precluded by stipulation.

Dr. Crandall started with an inquiry into his family history. (Tr. 4:25-5:1) This prohibited inquiry continued through pages 5 through 16 and covered whether his sister financially supported him, whether he moved from his brother’s house because he had enough money to support himself, followed by “Do you remember the year you got married.” (Tr. 16: 23-24.) Dr. Crandall inquired about his girlfriend, marital status, who he had children with, why he separated from his girlfriend, where his child lived, and

whether he got another partner.

Dr. Crandall asked for the reasons Plaintiff wanted to get married, which Plaintiff gave. When pressed, Plaintiff said "I already told you some. I don't know what else to tell you." Dr. Crandall said, "You didn't tell me, actually." Plaintiff mentioned "changes in this country." (Tr. 21:19-22.) Plaintiff said "I don't know. I feel like I'm being persecuted, or like, I don't understand. Maybe I don't feel very confident, like stuff like that." (21:25-2:2.)

This colloquy followed:

Dr. Crandall: "Do you feel like you could be arrested because there's a lot of people going toward like someone who may be considered illegal immigrant?"

Plaintiff: "Well, that's what the news are saying right now recently, only because they see a face that's Hispanic, they want to arrest you."

Dr. Crandall: Are you a legal citizen?
Are you a citizen of the United States?

Plaintiff: I would prefer not to answer that question.

Dr. Crandall: Okay. Okay. Is your potential is the woman that's your partner, is she a citizen of the United States?

Plaintiff: The same. I would prefer not to answer.

Dr. Crandall: Okay. Okay. I can see why that is unsettling, the current situation in the country. So I'm going to ask you some questions that are just standard that I ask in all of my evaluations. Okay?" (Tr. 22:4.)

To say that the word "persecution" opened the door is to ignore that the sixth question posed after preliminary questions

about process was “where were you born” and “who was in your family.” 4:25-5:1.

Dr. Crandall did not articulate why the interview started with family history, which was outside the scope of inquiry. Defendant contends that on-the-record articulation was not required. It is not clear how anyone could evaluate Dr. Crandall's reasoning for a good-faith basis for a particular inquiry if she did not express it out loud. The dictionary definition requires an outward expression.

Articulate: “expressing oneself readily, clearly, and effectively.” (Merriam-Webster.com)

Express: “a: to represent in words: STATE; b: to make known the opinions or feelings of (oneself).” (Id.)

Dr. Crandall continued inquiring about lawsuits, legal history, or whether Plaintiff had ever been arrested. (Tr. 35:8-13.) This prohibited inquiry was not preceded by an articulation of a good faith basis to justify it. Rather, Dr. Crandall asked about spots on Plaintiff's skin. (Id.)

Dr. Crandall went on to discuss financial issues, who Plaintiff supported, and whether that was stressful. (Tr. 41:7-42:2.)

These topics were outside the scope of inquiry and Dr. Crandall did not articulate a good-faith basis for her inquiry.

C.
Imposition of sanctions is warranted.

Dr. Crandall declares she received a draft and final version of the stipulation before conducting the exam. (Crandall decl., ¶ 5.) However, as the transcript shows, she did not confine inquiry according to the parties' stipulation.

Plaintiff's counsel incurred \$5,460 to prepare the motion, review the opposition, prepare the reply and to appear which the Court finds reasonable. Costs of \$60 were incurred for the filing

fee.

In addition, the Court imposes evidentiary sanctions as articulated below.

IV.

CONCLUSION

Accordingly, Plaintiff's motion is GRANTED. The Court imposes monetary sanctions against Koos Manufacturing, Inc. and its counsel of record, Buchalter, LLP, jointly and severally, in the amount of \$5,460 payable to Plaintiff within 10 days.

The Court imposes evidentiary sanctions:

1)

The Court excludes from evidence at trial all testimony, reports, opinions, findings, conclusions, and materials arising from or related to the defense mental examination of Plaintiff conducted by Dr. Rebecca Crandall on February 19, 2026; and

2)

Dr. Rebecca Crandall is prohibited from testifying at trial, whether as a percipient

witness

or expert witness, regarding any observations, findings, opinions, or conclusions

derived

from the February 19, 2026, defense mental examination.